

		employer or supervisor such that he was responsible for hiring, supervising, or retaining an unfit employee. The demurrer is SUSTAINED with 20 days leave to amend as to the third cause of action for negligent hiring, retention, and supervision as alleged against Defendant Nunez. At the hearing on these motions and the concurrently scheduled Case Management Conference, the parties shall be prepared to discuss whether Plaintiff's Motion for Leave to Amend should be vacated as moot. This Motion for Leave to Amend is scheduled for a 8/4/2025 hearing. Moving Defendants to give notice.
10	Thomas vs. Regional Center of Orange County 30-2023-01333739	1. Motion to Dismiss filed by Larry Landauer, Lilianna Castillo, Regional Center of Orange County, Arturo Cazares on 10/22/2024 2. Case Management Conference Defendants Regional Center of Orange County, Larry Landauer, Arturo Cazares, and Liliana Castillo filed a Motion to Dismiss asking the Court to dismiss Plaintiff's case against Defendant Regional Center of Orange County and enter judgment in favor of Defendant Regional Center of Orange County and against Plaintiff Joy Thomas. Plaintiff did not oppose the motion. Defendants move pursuant to Code of Civil Procedure section 581(f)(2). Section 581(f)(2) states that the "court may dismiss the complaint as to that defendant when . . . [e]xcept where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." "The decision to dismiss an action under section 581, subdivision (f)(2) rests in the sound discretion of the trial court and a reviewing court will not disturb the ruling

unless the trial court has abused its discretion.” *Gitmed v. General Motors Corp.*, 26 Cal. App. 4th 824, 827 (1994).

Here, Defendants Regional Center of Orange County, Larry Landauer, Arturo Cazares, and Liliana Castillo’s demurrer to all causes of action in Plaintiff Joy C. Thomas dba Casa Alegria’s First Amended Complaint was sustained on 9/9/2024. ROAs 74 and 85. Plaintiff was given 15 days leave to amend. *Id.*

As of April 16, 2025, no amended complaint has been filed. Accordingly, the Court **GRANTS** the motion and dismisses Plaintiff’s case against Defendant Regional Center of Orange County and enters judgment in favor of Defendant Regional Center of Orange County and against Plaintiff Joy Thomas.

Moving party to give notice.